

**MINUTES OF THE MEETING OF THE
MANHEIM TOWNSHIP BOARD OF COMMISSIONERS
MONDAY, SEPTEMBER 23, 2024 - 6:00 P.M.**

Roll Call:

The meeting of the Manheim Township Board of Commissioners was held at 6:00 p.m., Monday, September 23, 2024, in the Public Meeting Room of the Municipal Office, 1840 Municipal Drive. Members present were Commissioners John C. Bear, Carol J. Gifford, Mary-Jo Huyard, Celso A. Mesias, and Stacey Morgan-Brubaker. Township Manager Rick Kane was also present. President Morgan-Brubaker led all in the pledge of allegiance to the flag of the United States of America.

Announcements or Changes to the Agenda:

Public Comment on Agenda Items: There was no public comment on agenda items this evening.

Minutes:

Commissioner Gifford moved to approve the minutes of the September 9, 2024, regular meeting. Seconded by Mr. Mesias. President Morgan-Brubaker asked if there were any questions or comments. There were none. Motion carried unanimously.

Payment of Bills:

Commissioner Bear moved to approve the September 23, 2024, disbursements and to fund the appropriate accounts for the disbursements. The bills presented for payment for the period ending September 23, 2024, were from the General Fund in the amount of \$451,588.76, from the Stormwater Fund in the amount of \$2,595.77, from the Golf Course Fund in the amount of \$8,393.52, from the Capital Reserve Fund in the amount of \$25,512.03, from the American Rescue Plan Act Fund in the amount of \$2,595.00, from the Highway Aid Fund in the amount of \$24,955.00, from the Library Foundation Fund in the amount of \$2,914.31 and from the Escrow Fund in the amount of \$58,106.20 for a Grand Total of \$576,660.59. Large payments went towards engineering services, legal services, electrical bills for street lights and buildings, and IT support. Seconded by Ms. Huyard. President Morgan-Brubaker asked if there were any questions or comments. There were none. Motion carried unanimously.

Public Hearings/Presentations/Appointments:

Employee of the Month

Police Chief Duane Fisher introduced Edward Christine as the Employee of the Month for August. Chief Fisher gave a brief description of the contributions Civilian Aid Christine has made to the Police Department and the Township.

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President Morgan-Brubaker, on behalf of the Commissioners, presented Mr. Christine with an appreciation award, and thanked Mr. Christine for all his hard work.

Manager's Monthly Report:

Mr. Kane presented the manager's report for August. He announced the Pleasure Road Culvert Replacement Project is complete and the roadway reopened on September 6th. The new fire pumper is now on the production line, this was funded by the Commissioners in the 2024 budget through a lease.

The Township recently hired Jonathan Massrie to fill the Public Works Assistant Director – Engineering position. Public Works recently mailed the 2024 leaf collection schedule. Leaf collection starts on October 21st.

Recently a Department of Agriculture inspector performed a surprise inspection of the Public Works pesticide spraying program. The inspector was very impressed with the Department's organization and digital documentation for the spray program. After the inspection the Township was found to be compliant with all of the Agricultural Department's regulations and requirements.

Commissioner Liaison Reports/Announcements:

Commissioner Mesias had no report this evening.

Commissioner Gifford had no report this evening.

Commissioner Huyard shared she and Commissioner Gifford attended the 9/11 memorial ceremony which was very well done. She thanked those who organized and participated in this event. Commissioner Gifford mentioned the employee of the month, police aide, Ed Christine, had a significant role in the ceremony. She agreed this was a very nice ceremony.

Vice-President Bear mentioned he and President Morgan-Brubaker attended the coffee with a commissioner event on Saturday where they had approximately 10 people participate.

President Morgan-Brubaker had no report this evening.

Old Business: There was no old business this evening.

New Business

Consent Agenda:

Commissioner Mesias moved to approve all items in the Consent Agenda, which consists of one security release and two extension of time requests. Seconded by Ms. Gifford. President Morgan-Brubaker asked if there were any questions or comments. There were none. Motion carried unanimously.

212 Spottswood Drive – Stormwater Management Plan, Financial Security Release

Authorized release of the financial security for the above referenced project in the amount of \$16,474.20, which represents the costs associated with required improvements completed and approved by the Township Engineer. The amount of financial security that will be retained after the release is Zero Dollars.

Ashford Meadows (Erb Farm) – Preliminary Subdivision & Land Development Plan – 2325 Lititz Pike & 120 Kreider Avenue, R-2 Residential Zoning District, Extension of Time Request

Approved the time extension provided by the applicant for the Preliminary Subdivision & Land Development Plan for Ashford Meadows for action by the Manheim Township Board of Commissioners. The time extension will extend the time in which the Board needs to act on the plan to December 30, 2024.

Joseph A. & Michelle B. Rondinelli – Preliminary/Final Lot Add-On Plan, 680 Valley Road, R-2 Residential Zoning District, Extension of Time Request

Approved the time extension provided by the applicant for the Preliminary/Final Lot Add-On Plan for Joseph A. and Michelle B. Rondinelli for action by the Manheim Township Board of Commissioners. The time extension will extend the time in which the Board needs to act on the plan to February 15, 2025.

Resolutions:

Resolution 2024 – 56 Approving the Collective Bargaining Agreement Between Manheim Township Professional Firefighters Association Local #5423 International Association of Firefighters and Manheim Township, and the corresponding Memorandums of Understanding Regarding (1) Retroactive Economic Benefits Beginning on January 1, 2024, and (2) “Float Fire Captain” Job Description

President Morgan-Brubaker mentioned she and Vice-President Bear were on the negotiation team for the Township working with a group of firefighters on this contract for approximately six months.

She summarized the agreement, mentioning this is a four-year term retroactive back to January 1, 2024. The contract includes a process to phase out the part-time firefighters. This will lift the burden of full-time firefighters having to work overtime to cover shifts for part-time firefighters who are no-shows. The contract also includes a wage scale based on years of service, etc. She stated the Commissioners are grateful for the all the work, patience and discussions the firefighters did to make this productive.

Captain Daniel Wagaman, President of the Firefighters Union thanked the Board for working with the professional firefighters to get this contract before the Board for approval. He stated

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this contract is an investment in the safety and security of all the people who live, work and visit Manheim Township. He pointed out other key items in the contract such as annual/bi-annual cancer screenings as firefighters have a higher risk of a cancer diagnosis. This contract also guarantees there are twelve trained certified and practiced firefighters on duty 24/7.

Commissioner Huyard moved to adopt Resolution 2024 – 56 approving the Collective Bargaining Agreement between Manheim Township Professional Firefighters Association Local #5423 International Association of Firefighters and Manheim Township, and the corresponding Memorandums of Understanding Regarding (1) Retroactive Economic Benefits Beginning on January 1, 2024, and (2) “Float Fire Captain” Job Description. Seconded by Mr. Bear. President Morgan-Brubaker asked if there were any questions or comments. There were no questions or comments. Motion carried unanimously.

Resolution 2024 – 57 Budget Amended for Manheim Township Fire Rescue

Commissioner Gifford moved to adopt Resolution 2024 – 57 authorizing amendments and supplemental appropriations of encumbered and unencumbered funds within various budgeted line items of the 2024 General Fund for retroactive economic benefits for all Manheim Township Fire Rescue Firefighters currently employed subject to the Collective Bargaining Agreement. Seconded by Mr. Mesias. President Morgan-Brubaker asked if there were any questions or comments. There were no questions or comments. Motion carried unanimously.

Ordinances: There were no additional ordinances this evening.

Motions/Decisions:

301 Sarsen Drive – Final Subdivision Plan, R-1 Residential Zoning District

Randy Dautrich, Dautrich Engineering, explained the plan proposes the subdivision of an existing 1.835-acre residential lot containing a single-family detached dwelling into three lots, creating two new building lots for construction of single-family detached homes. The plan provides stormwater management facilities on each of the two new lots for the future dwellings and associated improvements. The Township Engineer and staff recommend approval of the plan and associated modification requests.

Commissioner Bear moved to approve the 301 Sarsen Drive Final Subdivision Plan and associated modification requests, conditioned upon satisfaction of the Township Engineer and staff review letters. Seconded by Ms. Huyard. President Morgan-Brubaker asked if there were any questions or comments. There were no questions or comments. Motion carried unanimously.

Stonehenge Estates Tract 2 (Stonebriar) – Final Subdivision and Land Development Plan – 256 Koser Road, R-2 Residential Zoning District

Derrick Musser, ELA Group, Inc. explained the plan proposes subdivision of a 23.6-acre lot for development of 90 new lots for construction of 52 single-family detached and 38 single-

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family semi-detached dwelling units at the intersection of Buckwalter and Koser Roads. 21 TDRs are required for the project. The plan includes sidewalks throughout the development with a crosswalk at the intersection of Buckwalter Road and Inverness Drive to allow pedestrian access to Reidenbaugh Elementary School. The Township Engineer and staff recommend approval of the plan and associated modification requests.

Commissioner Mesias moved to approve the Final Subdivision and Land Development Plan for Stonehenge Estates Tract 2 (Stonebriar) and associated modification requests, conditioned upon satisfaction of the Township Engineer and staff review letters, and acquisition of required TDRs. Seconded by Ms. Huyard. President Morgan-Brubaker asked if there were any questions or comments. There were none. Motion carried unanimously.

Fisher Companies – Final Lot Add-On Plan, 1758 and 1766 Oregon Pike, B-2 Business Zoning District and D-C Corridor Overlay

Douglas Herr, Hershey Land Surveyors, LLC, spoke on behalf of the applicants. The plan proposes to transfer 0.314 acres from the BELCO Community Credit Union property at 1766 Oregon Pike to the adjacent Dennis D. Herr property at 1758 Oregon Pike. The Township Engineer and staff recommend approval of the plan and associated modification request.

Commissioner Huyard moved to approve the Final Lot Add-On Plan for Fisher Companies and associated modification request, conditioned upon satisfaction of the Township Engineer and staff review letters. Seconded by Ms. Gifford. President Morgan-Brubaker asked if there were any questions or comments. There were none. Motion carried unanimously.

GJA Real Estate Partnership (Neffsville Veterinary Clinic) – Conditional Use Application, 2555 Lititz Pike, B-2 Business Zoning District, Schedule a Public Hearing

Commissioner Gifford moved to schedule a public hearing on the Conditional Use Application of GJA Real Estate Partnership for a 4,521 net square-foot expansion of the Neffsville Veterinary Clinic for Monday, October 28, 2024. Seconded by Mr. Mesias. President Morgan-Brubaker asked if there were any questions or comments. There were none. Motion carried unanimously.

Motion: Approval of the Minimum Municipal Obligation (MMO) for Funding of the 2025 Pension Obligations for the Police and Non-Uniform Plans

Commissioner Bear moved to approve the Minimum Municipal Obligation (MMO) in the total amount of \$2,298,215.00. Seconded by Ms. Huyard. President Morgan-Brubaker asked if there were any questions or comments. There were none. Motion carried unanimously.

Acknowledgements: There were no acknowledgements this evening.

Other Business/Deliberations: There were no other business/deliberations this evening.

Correspondence and Petitions: There was no correspondence or petitions this evening.

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Public Comment on other Township Related Business:

Ralph Stone, 206 Bushong Road, shared his concerns regarding traffic congestion and the unsafe intersections at Oregon Pike, East Oregon Road and Bushong Road and Pinetown and Creek Roads.

Nancy McMillin, 53 Kreider Avenue, asked for further information about the Erb Farm extension of time request, which was part of the consent agenda.

Sharyn Young, Director of Planning and Zoning, explained the purpose of the time extension is to allow the Township more time to review the plan and for the Board of Commissioners to act on the plan. This is due to the fact that the project is pretty involved, and the applicants' plan is still evolving. This extension of time extends through December.

Ms. McMillin stated the property is currently being farmed and certain farming practices are not congruent with peaceful residential development living. It was explained that State law protects the agriculture community by allowing normal farming operations from having to adhere to public nuisance laws.

Adjournment:

There being no further business before the Commissioners, Commissioner Bear moved the meeting to be adjourned at 6:40 p.m. Seconded by Ms. Huyard. Motion carried unanimously.

Respectfully submitted,

Richard C. Kane
Manager/Secretary